Fort Bend County District Court

Cause No. 2026-CV-0014

Kayla Brooks, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Kayla Brooks

Date:	September 27, 2026
Location:	Offices of Bauer & Bryant Law Group
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Kelly Smith, Bauer & Bryant Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, if that's acceptable. You can use the case caption.

Q: Understood. Let's keep it simple. Where were you on the day of the collision?

A: I was driving through an intersection in Katy, Texas, heading to the grocery store near my house.

Q: What were you doing at the moment the other vehicle made contact?

A: I was making a left turn. I had a green light, but I was turning acrsos the oncoming lanes when the other car came through.

Q: Did you see the other vehicle before the impact?

A: Not in time. I glanced left, saw nothing close, and started to turn. The impact came from the side, and I didn't have a chance to react.

Q: How fast were you going when you began the turn?

A: Slowly. I was nearly stopped, maybe ten or fifteen miles an hour. I was being careful.

Q: After the collision, did you feel any pain right away?

A: Not immediately. I was shaken and my neck felt stiff. By the next morning, my lower back was throbbing and I could barely bend over to put on my shoes.

Q: Did you seek medical care?

A: Yes. I went to an urgent care clinic that same evening, and then I saw my primary care doctor the following week. They diagnosed a lumbar strian and referred me to physical therapy.

Q: How often have you been attending physical therapy?

A: Two or three times a week at first. Now it's been reduced to about once a week, and I do exercises at home most days.

Q: Has the back strain affected your daily activities?

A: Quite a bit. I used to coach my kid's soccer team on weekends, and I've had to hand that over to my spouse. Lifting groceries is hard, and I avoid sitting for long periods because it flares up.

Q: Have you missed time from work?

A: I missed about two weeks entirely and then worked modified hours for a while. I do a desk job, but even sitting at a desk for a full day aggravated the pain.

Q: Are you currently taking any medication for the pain?

A: I take an over-the-counter anti-inflammatory when it's bad, and my doctor prescribed a muscle relaxant that I only use at night.

Q: Do you have any prior injuries to your back?

A: No, nothing that required treatment. I had some minor stiffness now and then, but nothing like this.